

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Simon Wang	Team: Team # 5	CCRB Case #: 201200502	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/06/2012 12:30 AM	Location of Incident: Schenectady Avenue and Carroll Street/Eastern Parkway	Precinct: 77	18 Mo. SOL 7/6/2013	EO SOL 7/6/2013	
Date/Time CV Reported Fri, 01/06/2012 1:19 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/11/2012 2:51 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Peter Behan	06134	947896	077 PCT
2. POM Deven Okvist	05730	947309	077 PCT
3. POM Roman Goris	14772	947042	077 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Roman Goris	Abuse: PO Roman Goris frisked § 87(2)(b)	
B.POM Deven Okvist	Force: PO Deven Okvist used physical force against § 87(2)(b)	
C.POM Deven Okvist	Discourtesy: PO Deven Okvist spoke rudely to § 87(2)(b)	
D.POM Deven Okvist	Abuse: PO Deven Okvist searched the car in which § 87(2)(b) was an occupant.	
E.POM Peter Behan	Abuse: PO Peter Behan searched the car in which § 87(2)(b) was an occupant.	
§ 87(2)(g), § 87(4-b)		

Case Summary

On January 6, 2012, § 87(2)(b) filed the following complaint with IAB. On January 11, 2012, it was received at the CCRB via referral number 12-01531. On January 6, 2012, at approximately 12:30 a.m., § 87(2)(b) was driving home from work with his cousin § 87(2)(b). They were pulled over at the intersection of Schenectady Avenue and Eastern Parkway in Brooklyn by PO Peter Behan, PO Deven Okvist and PO Roman Goris. The following allegations resulted:

- **Allegation A – Abuse of Authority:** PO Roman Goris frisked § 87(2)(b) § 87(2)(g).
- **Allegation B – Force:** PO Deven Okvist used physical force against § 87(2)(b).
- **Allegation C – Discourtesy:** PO Deven Okvist spoke rudely to § 87(2)(b) § 87(2)(g).
- **Allegation D – Abuse of Authority:** PO Deven Okvist searched the car in which § 87(2)(b) was an occupant.
- **Allegation E – Abuse of Authority:** PO Peter Behan searched the car in which § 87(2)(b) was an occupant. § 87(2)(g).
- § 87(2)(g), § 87(4-b)

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was a § 87(2)(b) black male, who is 5'6" tall and weighs 158 pounds. He has black hair and brown eyes.* § 87(2)(b)

CCRB Testimony

On January 6, 2012, § 87(2)(b) filed this complaint with IAB, and a provided a statement by phone. On January 20, 2012 § 87(2)(b) was interviewed at the CCRB. § 87(2)(g)

On January 6, 2012, at approximately 12:30 a.m., § 87(2)(b) was driving his gold 2000 Honda Accord with his cousin § 87(2)(b) in the front passenger seat. They worked together and were going home, headed southbound on Schenectady Avenue in Brooklyn. His car's license plates were issued by the State of Virginia. § 87(2)(b) was pulled over by a marked police van at the intersection of Schenectady Avenue and Carroll Street.

An officer identified by the investigation as PO Deven Okvist came to the front passenger-side door and asked § 87(2)(b) for his license and registration. § 87(2)(b) described PO Okvist as a muscular white male, 5'9" tall, with black hair. § 87(2)(b) asked why he was

being pulled over. PO Okvist told him to provide his license first. When § 87(2)(b) handed over his State of Virginia Driver's License and registration, PO Okvist asked § 87(2)(b) whether he owned the car. § 87(2)(b) stated that he did. PO Okvist told § 87(2)(b) that he was pulled over, because the third light was not working. § 87(2)(b) stated that he would fix the light in the morning. PO Okvist then asked § 87(2)(b) whether he lived in New York, whether his license was suspended, whether he had ever received a summons, whether he ever had a New York State driver's license, and whether he had ever been arrested. § 87(2)(b) asked why he was being questioned, and asked whether he was under arrest. PO Okvist asked him whether he had any guns or drugs inside his vehicle. § 87(2)(b) stated that he did not and again questioned why he was being interrogated about such matters. PO Okvist then asked § 87(2)(b) for his name and whether he had ever been arrested. § 87(2)(b) stated that he had been arrested for DWI before. At that point, § 87(2)(b) told § 87(2)(b) not to answer such questions because they were not under arrest and did not need to answer such questions.

PO Okvist then told another officer to take § 87(2)(b) out of his car. An officer identified by the investigation as PO Roman Goris, whom § 87(2)(b) had not noticed earlier, was standing on the driver's side. § 87(2)(b) described PO Goris as a male who was white or Hispanic in his late 20's, 6'0" tall, 170 lbs. PO Goris told § 87(2)(b) to exit the car. § 87(2)(b) complied, but asked why he was being told to exit the car. PO Goris was conciliatory, stating that he understood why § 87(2)(b) was upset. PO Goris frisked § 87(2)(b)'s armpits, groin and legs, but did not place his hands inside § 87(2)(b)'s clothing. PO Okvist did not tell PO Goris to frisk § 87(2)(b). § 87(2)(b) was "pissed off" at that point. Another officer identified by the investigation as PO Peter Behan, whom § 87(2)(b) had also not noticed earlier, was standing near PO Goris. § 87(2)(b) described PO Behan as a white male, 5'6" tall, 150 lbs. PO Goris led him to the back of the car. § 87(2)(b) told PO Goris that he was heading home after work, and that he felt he was being harassed. PO Goris again stated that he understood and told § 87(2)(b) that PO Okvist is a ten-year veteran of the NYPD and that seven out of ten individuals that they pull over have something illegal. PO Goris also stated to § 87(2)(b) that he appeared agitated and asked whether he was nervous about something. § 87(2)(b) protested that neither of those reasons justified his treatment.

PO Okvist approached § 87(2)(b) while holding his front license plate and asked him whose license plate it was. § 87(2)(b) stated that it was his front license plate, which matched his rear license plate. He stated that earlier that day he found that his front license plate was hanging loose by one screw, and rather than risk losing it, he removed it and placed it between the front passenger seat and the center console. PO Okvist stated that he searched the car because he saw the license plate. § 87(2)(b) disputed that the license plate was visible in its location. § 87(2)(b) looked towards the front of his vehicle and saw PO Okvist searching inside the front passenger seat. § 87(2)(b) stated to PO Goris that officers had no right to search his car. PO Okvist apparently heard § 87(2)(b) because he ran to § 87(2)(b) and grabbed him by the throat with his right hand, and squeezed, but not hard enough to obstruct breathing. Holding on to his neck, PO Okvist pushed § 87(2)(b) back against the rear quarter panel of his car. PO Okvist stated, "Shut the fuck up. Shut the fuck up. Shut the fuck up. I do whatever I want to do." PO Okvist released § 87(2)(b) and returned to searching the car.

As PO Goris and § 87(2)(b) were speaking to each other, PO Behan approached § 87(2)(b) and told him to put his hands behind his back. § 87(2)(b) asked why. PO Behan stated that he was too agitated. § 87(2)(b) allowed himself to be handcuffed, but complained that he had done nothing wrong. PO Okvist and PO Behan then entered and searched the back

seat of § 87(2)(b) car. After approximately ten to fifteen minutes, PO Behan removed the handcuffs from § 87(2)(b) and he returned to his vehicle. All three officers entered their patrol car. After a time, PO Goris approached § 87(2)(b) and gave him a summons for § 87(2)(a) 160.50. The name on the summons stated PO Okvist, but § 87(2)(b) did not see who wrote the summons. § 87(2)(b) stated that he wanted PO Okvist's name. PO Goris stated that the name would be on the summons. § 87(2)(b) stated that he wanted to see for himself. PO Goris told him to leave it alone and that he could have gotten two more tickets for his light as well as his license plate. § 87(2)(b) walked back to the van and approached PO Behan, who was standing outside of the van. PO Behan provided his name and badge number, which § 87(2)(b) wrote down. When § 87(2)(b) approached PO Okvist, who was sitting down in the van, PO Okvist turned his torso, hiding his shield from § 87(2)(b) view. He yelled at § 87(2)(b) to, "Get the fuck out of here." § 87(2)(b) asked PO Okvist to for his name, he stated, "It's on the fucking ticket. Get the fuck out of here right now." PO Goris and PO Behan both entered the van, and PO Okvist stated to them, "Let's get the fuck out of here right now." The officers drove away.

§ 87(2)(b) was quiet throughout the incident, and did not say anything other than to answer PO Okvist's questions. § 87(2)(b) stated that the officers incorrectly recorded the incident location as Schenectady Avenue and Eastern Parkway. § 87(2)(b) denied that he saw any police vehicles when he was at Schenectady Avenue and Eastern Parkway.

Attempts to Contact Civilians

From February 6 to May 4, 2012 the undersigned made five calls to § 87(2)(b) all of which went unanswered. Voicemails were left on each occasion. § 87(2)(b) could not provide an address for § 87(2)(b) and searches via the CCRB database, and the White Pages for his address did not yield any results. As such § 87(2)(b) could not be contacted for this investigation.

NYPD Statements:

Subject Officer: PO DEVEN OKVIST

- *PO Deven Okvist is a § 87(2)(b)-old white male who is 5'11" tall and weighs 205 pounds. He has brown hair and brown eyes.*
- *On January 6, 2012, PO Okvist was working from 5:30 p.m. to 3:05 a.m. He was working conditions with PO Behan and PO Goris. They were dressed in uniform and worked in a marked van.*

Stop Question and Frisk Report

The handwritten report prepared by PO Okvist indicated that § 87(2)(b) was suspected of Grand Larceny Auto because he had a "missing plate." It was also noted in the report that § 87(2)(b) displayed furtive movements. § 87(2)(b) was frisked because he made furtive movements. § 87(2)(b) was handcuffed, but not arrested. He was issued a summons for § 87(2)(a) 160.50. § 87(2)(b)'s behavior was "highly uncooperative."

Summons

§ 87(2)(a) 160.50
§ 87(2)(b)

Memo Book

At 12:25 a.m., PO Okvist conducted a vehicle stop for a missing license plate at Eastern Parkway and Schenectady Avenue in Brooklyn. § 87(2)(b) moved something between the seats. Upon approach he became loud and disorderly, exhibiting obscene language and violent behavior. He also had a brake light that was out. At 12:30 a.m. § 87(2)(b) was issued a summons.

CCRB Statement

On September 5, 2012, PO Deven Okvist of the 77th Precinct was interviewed at the CCRB.

On January 6, 2012 at approximately 12:30 a.m., PO Okvist was on patrol with PO Behan and PO Goris. While heading westbound on a cross-street of Schenectady Avenue, which he could not recall, they observed § 87(2)(b) driving a vehicle without a front license plate southbound on Schenectady Avenue. They pulled § 87(2)(b) over at the intersection of Schenectady Avenue and Eastern Parkway. As § 87(2)(b) pulled over, PO Okvist observed that his brake light was not functioning.

PO Okvist approached the front passenger side. PO Goris and PO Behan approached the driver side. As the officers approached, PO Okvist observed the driver, § 87(2)(b) leaning across towards the passenger side, and moving his shoulder downwards towards the center consol. PO Okvist could not see what § 87(2)(b) had in his hand. When PO Goris asked § 87(2)(b) for his license and registration, § 87(2)(b) began yelling, “Why are you pulling me over? What did I do?” PO Okvist found § 87(2)(b)’s behavior to be nervous and suspicious. § 87(2)(b) who was in the front passenger seat, did not speak or react to PO Okvist, which he also found to be suspicious. The officers asked § 87(2)(b) and § 87(2)(b) to exit the vehicle to ensure their safety because § 87(2)(b) had stuffed an item in between the driver and passenger seat. PO Okvist could not see into the gap between the seats from his vantage point. § 87(2)(b) yelled at the officers, asking why they were asking § 87(2)(b) to exit the vehicle, and if they were going to search his car, which heightened PO Okvist’s suspicions.

§ 87(2)(b) and § 87(2)(b) exited the car. § 87(2)(b) puffed up his chest at the officers on the driver’s side, and raised his hands up to chest level, which PO Okvist found to be threatening. § 87(2)(b) was also pacing around, and still yelling. PO Goris or PO Behan frisked § 87(2)(b) after he exited the vehicle. § 87(2)(b) was guided to the rear of the vehicle, though no physical force was required. PO Okvist reached in between the driver and passenger seat and found a license plate, which did not match the rear license plate. PO Okvist could not see § 87(2)(b) § 87(2)(b) from inside the car, but heard him yelling about PO Okvist searching the car. PO Okvist did not search any other part of the car. PO Okvist denied that any officer pushed § 87(2)(b) against the trunk, place § 87(2)(b) in a chokehold or, place their hands around his neck. PO Okvist asked § 87(2)(b) about the license plate, and he explained that it was from another vehicle of his. PO Okvist ran the license plate for warrants, but found no results, so he placed it back into the car.

PO Okvist did not recall whether § 87(2)(b) was handcuffed at any point. In response to § 87(2)(b) yelling, PO Okvist and his partners told him to “shut up” but did not curse at him or tell him to “shut the fuck up.” PO Okvist wrote a criminal summons for § 87(2)(a) 160.50 to § 87(2)(b) which he gave to another officer to present to § 87(2)(b). PO Okvist was sitting in his van filing out his memo book when § 87(2)(b) approached his window and yelled at him, asking him why he gave him a summons. PO Okvist did not recall § 87(2)(b) asking any officer for their name or shield number, but he did explain to § 87(2)(b) that the

information was on the summons. PO Okvist denied that he cursed at § 87(2)(b) while doing this and denied that he said, “Let’s get the fuck out of here.”

PO Okvist detected the odor of alcohol on § 87(2)(b)’s breathe. PO Okvist called the precinct stationhouse by cell phone, but could not locate a breathalyzer. PO Okvist did not recall who that other officer was. § 87(2)(b) did not have redness in his eyes nor did he slur his speech, so he was allowed to drive the vehicle away.

Subject Officer: PO PETER BEHAN

- PO Behan was a § 87(2)(b)-old white male who was 6’0” tall and weighs 175 pounds. He has brown hair and blue eyes.
- On January 6, 2012, PO Behan was working from 5:30 p.m. to 3:05 a.m. He was working conditions with PO Okvist and PO Goris. They were dressed in uniform and worked in a marked van.

Memo Book

PO Behan did not have any memo book entries regarding this incident.

CCRB Statement

On September 5, 2012 PO Peter Behan of the 77th Precinct was interviewed at the CCRB.

PO Behan observed § 87(2)(b) driving his vehicle without a front license plate. PO Behan did not recall what position their patrol car was relative to § 87(2)(b)’s vehicle, but stated that they were not driving in the opposite direction because Schenectady is a one way southbound street.

As PO Behan approached the driver’s side, he observed § 87(2)(b) leaning towards the front passenger seat, moving in a downward motion with his shoulders, apparently stuffing something between the driver and passenger seat. From his vantage point, PO Behan could not see what the object § 87(2)(b) was placing between the seats.

There were two officers on the driver’s side and one officer on the passenger side. Another officer whom PO Behan could not recall approached the driver’s window, and PO Behan stood behind that officer. When the officers approached § 87(2)(b) he was irate, stating repeatedly that he had not done anything. PO Behan did not speak to § 87(2)(b) at the driver’s side window. § 87(2)(b) was quiet and compliant. The officers asked both § 87(2)(b) and § 87(2)(b) to exit the vehicle, because they were concerned for their safety after seeing § 87(2)(b) stuffing the unknown object in between the seats.

Once § 87(2)(b) exited the vehicle, he remained irate, yelling at the officers. Fearing for his safety, PO Behan placed § 87(2)(b) in handcuffs. § 87(2)(b) was cooperative. PO Behan did not recall where § 87(2)(b) was handcuffed, but it took place either at the driver’s side door or at the rear of his car. PO Behan handcuffed him by himself, and did not use any physical force to handcuff him. § 87(2)(b) was frisked around his waistband after he was handcuffed, but he did not recall which officer did that. PO Behan and another officer, whom he could not recall stood with § 87(2)(b) while the other officer recovered a license plate from between the driver and passenger seat. PO Behan did not witness where in the vehicle the other officer searched. PO Behan did not recall whether the license plate matched the rear license plate.

PO Behan did not recall if § 87(2)(b) offered an explanation of why he was missing the front license plate. PO Behan denied that any officer was pushed against the vehicle or that any officer placed § 87(2)(b) in a chokehold or placed their hands around his neck. PO Behan smelled the odor of alcohol on § 87(2)(b)'s breath. PO Behan questioned § 87(2)(b) on where he was coming from, and § 87(2)(b) replied that he had just come from work. PO Behan told § 87(2)(b) to calm down. PO Behan denied that he or any of his partners told § 87(2)(b) to, "Shut the fuck up," or that they cursed at him in any way.

Because they detected the odor of alcohol on § 87(2)(b)'s breath, they called the precinct stationhouse to ask for a breathalyzer. PO Behan did not recall whether they used the radio or a cell phone. PO Behan did not recall who they spoke to, but they were told that there were no breathalyzers available at the time. § 87(2)(b) was released with a summons for § 87(2)(a) 160.50, which was written by either PO Okvist or PO Goris.

§ 87(2)(b) was still upset upon being released. PO Behan did not recall whether § 87(2)(b) asked any officer for their name or badge number. PO Behan denied that any officer told § 87(2)(b) "It's on the fucking summons," or "Let's get the fuck out of here." § 87(2)(b) did not complain of any injuries. PO Behan did not recall how they justified releasing § 87(2)(b) without a breathalyzer, but he believed that § 87(2)(b) was asked to drive the vehicle. None of the officers were trained to conduct any other sobriety tests.

Subject Officer: PO ROMAN GORIS

- PO Goris is a § 87(2)(b)-old Hispanic male who is 5'11" tall and weighs 245 pounds. He has black hair and brown eyes.
- On January 6, 2012, PO Goris was assigned to Conditions and was dressed in uniform. He worked with PO Okvist and PO Behan. They drove a marked van

Memo Book

At 12:25 a.m., PO Goris conducted a vehicle stop for a missing license plate, and no lights at Eastern Parkway and Schenectady Avenue in Brooklyn. Upon approach he became loud and disorderly, exhibiting obscene language and violent behavior. He also had a brake light that was out. At 12:30 a.m., § 87(2)(b) was issued a summons by PO Okvist.

CCRB Testimony

On October 2, 2012 PO Goris of the 77th Precinct was interviewed at the CCRB.

PO Goris observed § 87(2)(b) driving southbound on Schenectady Avenue without any lights on. PO Goris approached the driver's side window while PO Okvist went to the passenger side window.

As PO Goris approached, he observed § 87(2)(b) turned towards the front passenger seat and moving downward, apparently placing something between the seats. PO Goris could not see what § 87(2)(b) had in his hands. When PO Goris reached § 87(2)(b)'s window, he still could not see what he had placed between the driver and passenger seat. PO Goris heard PO Okvist asked § 87(2)(b) § 87(2)(b) who was in the front passenger seat to exit the vehicle. For his own safety and in response to PO Okvist, PO Goris also asked § 87(2)(b) to exit the vehicle. § 87(2)(b) complied and exited the vehicle. PO Goris smelled the odor of alcohol on § 87(2)(b)'s breathe.

PO Goris denied that he frisked § 87(2)(b) when he exited the vehicle. He led § 87(2)(b) to the rear of the car with PO Okvist and PO Behan. PO Okvist reached into the front of the passenger compartment between the driver and passenger seat and retrieved a vehicle license plate. PO Goris did not recall § 87(2)(b)'s explanation of the license plate. PO Goris did not see whether PO Okvist searched in any other place inside § 87(2)(b)'s vehicle. PO Goris then returned to the police van to conduct warrant checks. PO Goris called the precinct stationhouse to ask for a breathalyzer, but he was told that none were available. When PO Goris left, he heard § 87(2)(b) screaming at PO Okvist and PO Behan. PO Goris did not recall what § 87(2)(b) was yelling. § 87(2)(b) § 87(2)(b) remained quiet during the entire incident. From the van, PO Goris saw § 87(2)(b) standing at the rear of his car with his hands behind his back, but did not see whether officers handcuffed him. PO Goris did not see either PO Okvist or PO Behan push § 87(2)(b) against the trunk of his car, nor did he see either officer place their hands around § 87(2)(b)'s neck and choke him.

§ 87(2)(b)'s speech was normal, and his eyes were not red or dilated, so he was not arrested for driving while intoxicated. PO Okvist issued § 87(2)(b) a summons, but PO Goris did not recall what the summons was for. § 87(2)(b) was upset upon receiving the summons, and walked to the passenger side of the van where PO Okvist was seated and asked him for his name and shield number. PO Okvist provided his name and shield number to § 87(2)(b) § 87(2)(b) told PO Goris that he was a gentleman and that, "you were good."

PO Goris denied that he or either of his partners ever told § 87(2)(b) to, "Shut the fuck up" or that any of them stated, "Let's get the fuck out of here."

NYPD Document

77th Precinct Roll Call

PO Okvist, PO Goris and PO Behan were working together. They were assigned to conditions.

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of August 19, 2012 with regard to the incident.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b)

Subject Officer(s) CCRB History

- PO Okvist has been a member of the service for four years and there are no substantiated CCRB allegations against him (encl.1b).
- PO Behan has been a member of the service for three years and there are no substantiated CCRB allegations against him (encl. 1a).

- PO Goris has been a member of the service for four years and there are no substantiated CCRB allegations against him (encl. 1c).

Conclusion

Allegations Not Pleaded

PO Okvist, PO Goris and PO Behan all stated that they pulled over § 87(2)(b) for driving a vehicle which was missing the front license plate, which was a violation. § 87(2)(b) admitted that he removed the front license plate from his vehicle because he feared that it would fall off.

§ 87(2)(g)

Identification of Subject Officers

§ 87(2)(b) did not identify the officers by name. However, the officers generally matched § 87(2)(b) descriptions. PO Okvist, PO Goris and PO Behan admitted to stopping § 87(2)(b)'s vehicle. PO Goris stated that he was the officer who was at the driver-side window whom § 87(2)(b) alleged ordered him out of the car and frisked him. PO Okvist admitted to searching § 87(2)(b)'s vehicle. § 87(2)(b) alleged that the officer who handcuffed him joined PO Okvist in searching his car. PO Behan stated that he handcuffed § 87(2)(b) by himself. Although PO Okvist denied cursing at or using force against § 87(2)(b), § 87(2)(b) made those allegations against the same officer who searched his vehicle, which PO Okvist admitted to doing. § 87(2)(g).

Investigative Findings and Recommendations

Allegation A – Abuse of Authority: PO Roman Goris frisked § 87(2)(b)

§ 87(2)(b) refused to answer the officers' questions regarding the status of his driver's license and urged § 87(2)(b) not to answer any questions. § 87(2)(b) alleged that PO Goris ordered him out of the car and frisked him. PO Okvist, PO Goris and PO Behan all claimed that as they approached § 87(2)(b)'s vehicle, they witnessed him making furtive movements by leaning towards the front passenger seat and moving his torso down which led them to believe that he was placing something in between the front seats. The officers could not see what § 87(2)(b) had placed between the seats while § 87(2)(b) and § 87(2)(b) sat in the vehicle. The officers removed § 87(2)(b) and § 87(2)(b) from the vehicle. Although PO Goris denied frisking § 87(2)(b), PO Okvist stated that either PO Goris or PO Behan had frisked § 87(2)(b) upon exiting the vehicle.

“Because of the inordinate risk inherent in approaching a person seated inside an automobile, officers may order both the driver and passenger to exit the vehicle without a particularized reason for believing that the occupants possess a weapon.” *People v. Alvarez*, 308 AD2d 184, 187, [2003] “When an occupant of a car makes physical movements that suggest that he is concealing a weapon, such conduct gives rise to reasonable suspicion justifying a frisk.” *People v. Crespo*, 292 AD2d 177 [2002]

§ 87(2)(g)

§ 87(2)(g)

Allegation B – Force: PO Deven Okvist used physical force against § 87(2)(b)

Allegation C – Discourtesy: PO Deven Okvist spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that PO Okvist, grabbed his neck, pushed him against the trunk of his vehicle and stated to him, “Shut the fuck up.” PO Okvist denied those allegations as did PO Behan and PO Goris. § 87(2)(g)

Allegation D – Abuse of Authority: PO Deven Okvist searched the car in which § 87(2)(b)
was an occupant.

Allegation E – Abuse of Authority: PO Peter Behan searched the car in which § 87(2)(b)
was an occupant.

§ 87(2)(b) alleged that after he was removed from his vehicle, PO Okvist searched the front seats of his vehicle, and found his front license plate between the driver and passenger seats. After questioning him about the license plate, PO Okvist and PO Behan allegedly then entered and searched the rear compartment of his vehicle. As noted above, all three officers witnessed § 87(2)(b) making furtive movements between the driver and passenger seats. PO Okvist admitted to searching between the driver and passenger seats, but denied searching any other portion of the vehicle. PO Behan denied that he participated in a search of the vehicle.

“When an officer observes an individual making furtive movements while still in front seat of vehicle, limited intrusion in the area of the vehicle where furtive movements were seen is justified.” *People v Cheek*, 18 AD3d 475, 476, [2005]

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Team: 5

Investigator: _____ Simon Wang _____ 01/18/13
Signature Print Date

Supervisor: _____

Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date